

BOARDS, COMMITTEES AND COMMISSIONS

9 Attachment 1

City of Waterville

Appendix 1A

Committee Charge: Board of Assessment Review

[Adopted 12-28-2023 by Ord. No. 199-2023]

Establishment and Regulation.

City of Waterville Boards, Committees and Commissions Ordinance, Chapter 9, Article VII, Board of Assessment Review

36 M.R.S. § 842, Notice of Decision

36 M.R.S. § 843, Appeals

1 M.R.S., Chapter 13, Freedom of Access

City of Waterville Ethics Ordinance (Chapter 18)

Purpose.

The Board shall have jurisdiction to hear and decide appeals of taxpayers from the decision of either the Assessor or from the decision of the municipal officers in those cases where the municipal officers may act, on applications for an abatement of an assessment filed in accordance with 36 M.R.S. § 841, as amended.

Membership.

Membership shall be comprised of three permanent members and two associate members. All appointments to the Board shall be by the Mayor with the approval of the City Council. The composition of the Board for the purpose of exercising jurisdiction shall consist of three members of permanent or associate status. An associate member may attend all hearings conducted by the Board of Assessment Review but shall have no vote. If a permanent member of the Board is unable to vote due to inability to be present at a hearing or because of a conflict of interest, the Chair or the Acting Chair shall designate one of the two associate members to replace the absent or recused member with full power to vote.

Scope of Authority.

In accordance with 30-A M.R.S. § 2691(3), the Board's role is to hear oral or documentary evidence and conduct cross-examination for a full disclosure of the facts. Decisions rendered must include a statement of findings and conclusions, as well as the reasons or basis for the findings and conclusions upon all the material issues of fact, law or discretion presented and the appropriate order, relief or denial of relief.

Notice of any decision must be mailed or hand-delivered to the petitioner, the petitioner's representative or agent, the planning board, agency or office and the municipal officers within seven days of the boards' decision an appeal.

It is not authorized to make promises or enter into verbal or written agreements purporting to represent the City.

Conduct of Business.

The Board is an official body of the City. As such it is subject to Maine's Freedom of Access Act, 1 M.R.S. § 403, and must meet in a location accessible to the public, allow the public to attend its meetings, publicly post the dates and times of its meetings, and keep minutes for the public record.

No member of the Board may participate in a matter before the Board where that member has a conflict of interest. If a question arises as to whether a member has a conflict of interest, after disclosure, the remaining members shall make that determination. The Board may review the Ethics Ordinance or

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consult with the Solicitor on conflict of interest questions.

The Board shall elect annually a Chair and a Secretary from its membership.

A taxpayer may apply in writing to the Board of Assessment Review within 60 days after notice in writing of the decision from which the appeal is being taken or after the application for abatement is deemed to have been denied in accordance with 36 M.R.S. § 842. If the Board of Assessment Review determines that the taxpayer is overassessed, the Board shall have authority to grant such reasonable abatement as it thinks proper; otherwise, the Board will confirm the decision of the Assessor or the municipal officers.

Reporting.

Notice of any decision must be mailed or hand-delivered to the petitioner, the petitioner's representative or agent, the planning board, agency or office and the municipal officers within seven days of the Board's decision.